subject to the manufacturing process. The Mines Act does not use the expression ‘worker’ or ‘miner’ for labour working in mines; rather, it uses an expansive expression: ‘a person working or employed in or in connection with a mine is said to be working or employed’. The Industrial Disputes Act used the expression ‘workmen’ for labour and defines this as a person employed in an industry to do any manual, unskilled, skilled, technical, operational, clerical or supervisory work, for hire or reward. The Payment of Wages Act uses ‘employee’ to mean any person who is employed for hire or reward to do any work, skilled or unskilled, manual or clerical, in scheduled employment with respect to the minimum fixed rate of wages.

The new Code on Wages has come up with a common definition. ‘Worker’ in the Code on Wages means any person (excluding an apprentice) employed in any industry to do any manual, unskilled, skilled, technical, operational, clerical or supervisory work for hire or reward, whether the terms of employment are express or implied, and includes working journalists and sales promotion employees. It also uses a definition of ‘employee’ similar to worker except that it includes administrative and supervisory workers as well. The Industrial Relations Code and Workplaces Conditions Code use exactly the same definition of employee and worker as the Wages Code. The Social Security Code uses almost the same definition of employee and worker but also brings in additional types of workers, like ‘platform worker’, ‘home-based worker’ and ‘gig worker’ within the broad framework of worker and employees.

Bringing greater uniformity in key definitions of different forms of labour in different kind of occupations is the most significant contribution of the consolidation exercise in labour laws. The Social Security Code understandably uses the widest definitions of workers/employees, making it applicable to the largest proportion of labour.